

		\$30,000.00 for attorneys' fees; \$12,362.35 for litigation costs; \$10,000.00 for settlement administration costs; and \$5,000.00 total PAGA penalties (\$3,750.00 to the LWDA). The final accounting hearing is scheduled for <u>January 14, 2027 at 9:00 a.m.</u> in Department CX105. Plaintiffs shall submit a final accounting report at least 9 court days before the final accounting hearing regarding the status of the settlement administration. The final report must include all information necessary for the court to determine the total amount actually paid to class members and aggrieved employees and any amounts tendered to the State Controller's Office under the unclaimed property law. Plaintiffs are ordered to give notice, including to the LWDA, and to file a proof of service.
2	Barragan v. California Mantel & Fireplace, Inc. 2021-01193396	Off calendar.
3	Barragan v. California Mantel & Fireplace, Inc. 2021-01235971	Off calendar.
4	Chavez v. RBA Builders, Inc. 2022-01259829	<u>Plaintiff's Motion for Preliminary Approval of Class Action Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for preliminary approval of a \$400,000 class action settlement. The court has the following questions and comments: 1. In the August 14, 2025 order (ROA 103), the court noted that paragraph 3.2.2(a) of the settlement agreement stated that "all payroll taxes, including employer payroll taxes, will be paid out from the Gross Settlement Amount." Settlement Agreement ¶ 3.2.2.(a). The court stated that this provision was inconsistent with other paragraphs of the settlement agreement (e.g., ¶¶ 1.21, 1.25) and inconsistent with the notice (e.g., §§ 3(1), 3(2)). The court stated that if the parties nevertheless propose to have "all payroll taxes, including employer payroll taxes" paid from the gross settlement amount, the parties must: (i) state specifically which taxes are proposed to be included in "all payroll taxes"; (ii) state the estimated amount of the deduction from the gross settlement amount for "all payroll taxes, including employer payroll taxes"; and (iii) explain why that deduction from the gross settlement amount is appropriate as the employment tax obligation is generally the employer's independent responsibility. In the supplemental filing, plaintiff states that the parties have agreed that defendant's employer payroll taxes shall be paid from the gross settlement amount. Supp. Moon Decl. (ROA 126) at 1:24-2:16. Plaintiff cites <i>Cifuentes v. Costco</i>

		<i>Wholesale Corp.</i> (2015) 238 Cal.App.4th 65, 77-78, as support for paying the employer's payroll taxes from the gross settlement amount. <i>Cifuentes</i> addresses withholding an employee's taxes from settlement funds, not an employer's taxes. See <i>id.</i> at 77 ("Costco's potential exposure for failing to withhold the payroll taxes outweighed the inconvenience to Cifuentes of seeking a refund for the excess withholding"); <i>id.</i> at 80 ("The law . . . required Costco to withhold payroll taxes from the award of lost wages. Costco complied with this requirement and satisfied the judgment by paying Cifuentes the remaining balance due. His remedy was to seek refunds for any excess withholding, not further damages from Costco"). Plaintiff should provide on point legal authority supporting payment of the employer's taxes from the gross settlement amount or the parties should revise the settlement agreement to state that defendant will pay the employer's taxes outside of the gross settlement amount. 2. The word "amended" should be removed from the title of the notice. 3. The last three sentences of the second paragraph of section 4(2) of the notice should be removed. 4. The last sentence of the first paragraph of the exclusion form should be removed, as this settlement does not settle a PAGA claim(s). 5. The last sentence in the second blue box on the exclusion form should be removed, as this settlement does not settle a PAGA claim(s). The hearing on plaintiff's motion for preliminary approval of a class action settlement is continued to <u>October 1, 2026 at 2:00 p.m.</u> in Department CX105 to permit the parties to address and respond to the above issues. See <i>also</i> Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). A supplemental brief shall be filed at least 9 court days before the hearing and shall address as necessary each of the above points. <u>If required, an amendment to the settlement agreement is directed, rather than "amended settlement agreement," to streamline the court's review.</u> The parties shall also provide redlined copies of any revised documents. Plaintiff is ordered to give notice and to file a proof of service. No earlier hearing date is available for this motion.
5	Cortina v. R & D Metal Fabricators Inc. 2025-01452225	<u>Plaintiff Alvaro Cortina's Motion to Seal</u> Plaintiff Alvaro Cortina moves to seal a settlement agreement between plaintiff and defendant R&D Metal Fabricators, which plaintiff lodged conditionally under seal in support of his motion approval of a PAGA settlement. For the following reasons, plaintiff's motion to seal is denied.